



**Bill Number: S.B. 1829**

**Shamp Floor Amendment**

**Reference to: printed bill**

**Amendment drafted by: Zach Dean**

## **FLOOR AMENDMENT EXPLANATION**

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1. Removes the applicability clause.

SHAMP FLOOR AMENDMENT  
SENATE AMENDMENTS TO S.B. 1829  
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-901, Arizona Revised Statutes, is amended to  
3 read:

4 13-901. Probation

5 A. If a person who has been convicted of an offense is eligible for  
6 probation, the court may suspend the imposition or execution of sentence  
7 and, if so, shall without delay place the person on intensive probation  
8 supervision pursuant to section 13-913 or supervised or unsupervised  
9 probation on such terms and conditions as the law requires and the court  
10 deems appropriate, including participation in any programs authorized in  
11 title 12, chapter 2, article 11. If a person is not eligible for  
12 probation, imposition or execution of sentence shall not be suspended or  
13 delayed. If the court imposes probation, it may also impose a fine as  
14 authorized by chapter 8 of this title. If probation is granted the court  
15 shall impose a condition that the person waive extradition for any  
16 probation revocation procedures and it shall order restitution pursuant to  
17 section 13-603, subsection C where there is a victim who has suffered  
18 economic loss. When granting probation to an adult the court, as a  
19 condition of probation, shall assess a monthly fee of not less than \$65  
20 unless, after determining the inability of the probationer to pay the fee,  
21 the court assesses a lesser fee. This fee is not subject to any  
22 surcharge. In justice and municipal courts the fee shall only be assessed  
23 when the person is placed on supervised probation. For persons placed on  
24 probation in the superior court, the fee shall be paid to the clerk of the  
25 superior court and the clerk of the court shall pay all monies collected  
26 from this fee to the county treasurer for deposit in the adult probation  
27 services fund established by section 12-267. For persons placed on  
28 supervised probation in the justice court, the fee shall be paid to the  
29 justice court and the justice court shall transmit all of the monies to

1 the county treasurer for deposit in the adult probation services fund  
2 established by section 12-267. For persons placed on supervised probation  
3 in the municipal court, the fee shall be paid to the municipal court. The  
4 municipal court shall transmit all of the monies to the city treasurer who  
5 shall transmit the monies to the county treasurer for deposit in the adult  
6 probation services fund established by section 12-267. Any amount  
7 assessed pursuant to this subsection shall be used to supplement monies  
8 used for the salaries of adult probation and surveillance officers and for  
9 support of programs and services of the superior court adult probation  
10 departments.

11 B. The period of probation shall be determined according to section  
12 13-902, except that if a person is released pursuant to section 31-233,  
13 subsection B and community supervision is waived pursuant to section  
14 13-603, subsection K, the court shall extend the period of probation by  
15 the amount of time the director of the state department of corrections  
16 approves for the inmate's temporary release.

17 C. The court, in its discretion, may issue a warrant for the  
18 rearrest of the defendant and may modify or add to the conditions or, if  
19 the defendant commits an additional offense or violates a condition, may  
20 revoke probation in accordance with the Arizona rules of criminal  
21 procedure at any time before the expiration or termination of the period  
22 of probation. If the court revokes the defendant's probation and the  
23 defendant is serving more than one probationary term concurrently, the  
24 court may sentence the person to terms of imprisonment to be served  
25 consecutively.

26 D. At any time during the probationary term of the person released  
27 on probation, any probation officer, without warrant or other process and  
28 at any time until the final disposition of the case, may rearrest any  
29 person and bring the person before the court.

30 E. The court, on its own initiative or on application of the  
31 probationer, after notice and an opportunity to be heard for the  
32 prosecuting attorney and, on request, the victim, may terminate the period  
33 of probation or intensive probation and discharge the defendant at a time  
34 earlier than that originally imposed if in the court's opinion the ends of  
35 justice will be served and if the conduct of the defendant on probation  
36 warrants it. THE COURT MAY NOT TERMINATE THE PERIOD OF PROBATION OR  
37 INTENSIVE PROBATION EARLIER THAN THAT ORIGINALLY IMPOSED IF THE DEFENDANT  
38 WAS CONVICTED OF A DANGEROUS CRIME AGAINST CHILDREN AS DEFINED IN SECTION  
39 13-705 UNLESS THE DEFENDANT WAS UNDER EIGHTEEN YEARS OF AGE AT THE TIME OF  
40 THE OFFENSE.

41 F. When granting probation the court may require that the defendant  
42 be imprisoned in the county jail at whatever time or intervals,  
43 consecutive or nonconsecutive, the court shall determine, within the  
44 period of probation, as long as the period actually spent in confinement  
45 does not exceed one year or the maximum period of imprisonment allowed  
46 under chapter 7 of this title, whichever is the shorter.

1           G. If the defendant is placed on lifetime probation and has served  
2 one year in the county jail as a term of probation, the court may require  
3 that the defendant be additionally imprisoned in the county jail at  
4 whatever time or intervals, consecutive or nonconsecutive, the court shall  
5 determine, within the period of probation if the defendant's probation is  
6 revoked by the court and the defendant is subsequently reinstated on  
7 probation. The period actually spent in confinement as a term of being  
8 reinstated on probation shall not exceed one year or, when including the  
9 initial one-year period of incarceration imposed as a term of probation,  
10 the maximum period of imprisonment allowed under chapter 7 of this title,  
11 whichever is shorter.

12           H. If restitution is made a condition of probation, the court shall  
13 fix the amount of restitution and the manner of performance pursuant to  
14 chapter 8 of this title.

15           I. When granting probation, the court shall set forth at the time  
16 of sentencing and on the record the factual and legal reasons in support  
17 of each sentence.

18           J. If the defendant meets the criteria set forth in section  
19 13-901.01 or 13-3422, the court may place the defendant on probation  
20 pursuant to either section. If a defendant is placed on probation  
21 pursuant to section 13-901.01 or 13-3422, the court may impose any term of  
22 probation that is authorized pursuant to this section and that is not in  
23 violation of section 13-901.01.

24           K. If the court imposes a term of probation, the court may require  
25 the defendant to report to a probation officer. The court or the  
26 defendant's probation officer may allow the defendant to fulfill a  
27 reporting requirement through remote reporting. The probation officer  
28 shall take into consideration and make accommodations for the  
29 probationer's work schedule, family caregiver obligations, substance abuse  
30 treatment or recovery program, mental health treatment, transportation  
31 availability and medical care requirements before setting the reporting  
32 time and location requirements for the probationer.

33           L. If a probationer makes a written request to the supervising  
34 probation department to courtesy transfer the probationer's intensive  
35 probation supervision or supervised probation to another county in this  
36 state with the intent to reside in that county and provides proof of  
37 family caregiver obligations, employment or housing, or an offer of  
38 employment or housing that will assist in the probationer's positive  
39 behavioral change, the supervising probation department shall do all of  
40 the following:

41           1. Confirm the details of the probationer's employment, housing or  
42 family caregiving plans.

43           2. Review any victim safety concerns and ensure compliance with the  
44 victims' bill of rights.

45           3. Submit the request for permission to proceed to the receiving  
46 county within seven business days after receipt.

1 M. After verifying the information submitted by the sending  
2 probation department pursuant to subsection L of this section, the  
3 receiving probation department shall provide the sending probation  
4 department with permission for the probationer to proceed to the receiving  
5 county within seven business days after receipt unless the receiving  
6 probation department finds the basis for the plan is not factual or the  
7 transfer will endanger the victim.

8 N. If a probationer's intensive probation supervision or supervised  
9 probation is courtesy transferred to another county pursuant to subsection  
10 L of this section and the probationer subsequently violates the terms of  
11 the probationer's probation or commits an additional offense while on  
12 probation, the probation department in the county in which the probation  
13 violation or additional offense occurred may not return the probationer's  
14 intensive probation supervision or supervised probation back to the county  
15 in which the probationer's probation was originally imposed except for  
16 revocation hearings or an order of the court.

17 Sec. 2. Section 13-924, Arizona Revised Statutes, is amended to  
18 read:

19 13-924. Probation; earned time credit; work time credit;  
20 applicability; definitions

21 A. The court may adjust the period of a probationer's supervised  
22 probation on the recommendation of an adult probation officer for earned  
23 time credit or work time credit.

24 B. Earned time credit equals twenty days for every thirty days that  
25 a probationer does all of the following:

26 1. Exhibits positive progression toward the goals and treatment of  
27 the probationer's case plan.

28 2. Is current on payments for ~~court-ordered~~ COURT-ORDERED  
29 restitution and is in compliance with all other nonmonetary obligations.

30 3. Is current in completing community restitution.

31 C. Work time credit equals thirty days for every thirty days that a  
32 probationer does all of the following:

33 1. Is engaged in eligible employment. A probationer must provide  
34 supporting documentation to the supervising probation officer within five  
35 business days after completing thirty days of eligible employment. The  
36 supervising probation officer must verify the probationer's employment  
37 through the supporting documentation that is provided by the probationer  
38 and by any other means that the court determines is necessary to verify  
39 the work, including site visits and telephonic verification. The  
40 probation officer must document any request for work time credit that is  
41 denied.

42 2. Exhibits positive progression toward the goals and treatment of  
43 the probationer's case plan.

44 3. Is current on payments for court-ordered restitution and is in  
45 compliance with all other nonmonetary obligations.

46 4. Is current in completing community restitution.

1 D. Any earned time credit and work time credit awarded pursuant to  
2 this section shall be revoked if a probationer is found in violation of a  
3 condition of probation.

4 E. This section does not apply to a probationer who is currently:

5 1. On lifetime probation.

6 2. On probation for any class 2 or 3 felony.

7 3. On probation exclusively for a misdemeanor offense.

8 4. Required to register pursuant to section 13-3821.

9 5. ON PROBATION FOR A DANGEROUS CRIME AGAINST CHILDREN AS DEFINED  
10 IN SECTION 13-705 UNLESS THE PROBATIONER WAS UNDER EIGHTEEN YEARS OF AGE  
11 AT THE TIME OF THE OFFENSE.

12 F. This section has no effect on the ability of the court to  
13 terminate the period of probation or intensive probation pursuant to  
14 section 13-901, subsection E at a time earlier than originally imposed.

15 G. For the purposes of this section:

16 1. "Eligible employment" means any occupation or combination of  
17 occupations for which a person can provide supporting documentation  
18 verifying at least one hundred thirty wage-earning hours in any thirty-day  
19 period.

20 2. "Supporting documentation" means an employment record, pay stub,  
21 employment letter, contract or other reliable means of verifying  
22 employment.

23 <<Sec. 3. Applicability

24 ~~This act applies to a person who is currently serving a term of~~  
25 ~~lifetime probation for a dangerous crime against children on the effective~~  
26 ~~date of this act and to a person who commits an offense involving a~~  
27 ~~dangerous crime against children and who is placed on lifetime probation~~  
28 ~~on or after the effective date of this act.>>~~

29 Sec. 3. Emergency

30 This act is an emergency measure that is necessary to preserve the  
31 public peace, health or safety and is operative immediately as provided by  
32 law.

33 Enroll and engross to conform

34 Amend title to conform

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